

Emergency contractor damage control — Action Checklist

PRINT THIS PAGE AND KEEP IT SOMEWHERE VISIBLE

AUDIT YOUR SCOPE AND EVIDENCE

- ☐ **Audit Your Scope and Evidence:** Create a three-column scope audit worksheet listing every contracted item, its completion status, and supporting evidence to establish objective facts about what was agreed versus what actually exists.
- ☐ **Audit Your Scope and Evidence:** Photograph and video every defective area with visible timestamps, documenting the exact date you first noticed each problem so your evidence holds up legally if disputes arise.
- ☐ **Audit Your Scope and Evidence:** Separate all change orders into a tracking document noting whether each modification was signed by both parties or agreed to verbally, since unsigned changes are nearly unenforceable.
- ☐ **Audit Your Scope and Evidence:** Conduct a physical walkthrough of the property with your scope audit worksheet in hand, recording video of the actual state of all work to create a timestamped visual record for your case.

DEPLOY LEGAL PROTECTIONS NOW

- ☐ **Deploy Legal Protections Now:** File a preliminary lien notice against your property within your state's required timeframe to protect your right to claim against the property itself for any amounts still owed or work not completed.
- ☐ **Deploy Legal Protections Now:** Consult a construction attorney immediately since stop-payment rights, preliminary lien deadlines, and back charge procedures all have strict statutory timeframes that vary by state and expire quickly.
- ☐ **Deploy Legal Protections Now:** Send all future communications to your contractor exclusively in writing through email or certified mail to create a verifiable paper trail that can be used as evidence in any dispute.
- ☐ **Deploy Legal Protections Now:** Issue a formal written scope freeze to your contractor stating that no additional work will be authorized or paid for until existing defects are resolved and both parties agree on a remediation plan.

SECURE YOUR FINANCIAL POSITION

- ☐ **Secure Your Financial Position:** Send a stop-payment instruction to your bank or escrow agent for any scheduled contractor payments until you fully understand your legal position and can make informed financial decisions.
 - ☐ **Secure Your Financial Position:** Create a complete accounting of every payment made with dates, amounts, and purposes, then add up all additional costs you've incurred from delays, defective work, or hiring replacement contractors.
 - ☐ **Secure Your Financial Position:** Review your contract for any liquidated damages clauses, delay penalties, or completion guarantees that work in your favor and can be used as leverage in negotiations or claims.
 - ☐ **Secure Your Financial Position:** Send a certified letter to your contractor formally documenting all defects, incomplete work, and missed deadlines while demanding resolution within a reasonable timeframe to establish the breach on record.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.